

TENTATIVE RULING FOR September 18, 2026

Department S22 – Judge David Driscoll

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2503452

MICHAEL GILLEY v. SHANNON DICUS, et al.

TENTATIVE RULING

On August 14, 2025, Petitioner Michael Gilley filed a Petition for Writ of Mandate against Respondents Shannon Dicus (“Sheriff Dicus”) and County of San Bernardino (erroneously sued as “San Bernardino County Sheriff’s Department”).

On August 25, 2025, Petitioner filed a First Amended Petition, as of right.

On January 14, 2026, Petitioner filed the operative Second Amended Petition, also as of right, which alleges the following causes of action: (i) Declaratory Relief re: Failure to Disclose and Provide Public Records; and (2) Production of Public Records pursuant to Government Code sections 7920.000, et seq.

Petitioner alleges that on January 12, 2025, he submitted several California Public Records Act (“CPRA”) requests (Request Nos. 25-1059, 25-1060, 25-1061, 25-1062) to the Sheriff’s Department, seeking records related to misconduct committed by several peace officers, specifically, Sergeant Jon Anderson, Sergeant Edward Leon, and Undersheriff Horace Boatwright. (SAP ¶¶ 100-101, 125-126, 146-147, 172-173.) Petitioner alleges that Sheriff Dicus and his staff have intentionally failed and refused to comply with the CPRA Requests to conceal and cover up peace officer misconduct involving Sgt. Anderson’s off-duty car accident, the destruction of a helicopter engine by Sgt. Anderson that cost the taxpayers at least \$124,511.11, misuse of helicopters by Sgt. Leon, improper flight lessons for Sgt. Anderson whose goal was to become a highly paid airline pilot after he retires, and Undersheriff Boatwright’s open display of

his own distracted driving during a TEAMS meeting with Sheriff's Department subordinates. (SAP ¶¶ 1-5.)

Now before the Court is Respondents' Motion to Disqualify Counsel. The Motion seeks to disqualify Petitioner's counsel, Stephen Miller (Miller).

On May 18, 2026, Petitioner filed an opposition. On June 30, 2026, Respondents filed a reply.

A trial court's authority to disqualify an attorney derives from the power inherent in every court to control in furtherance of justice the conduct of its ministerial officers, and all other persons in any manner connected with a judicial proceeding before it. (Code Civ. Proc., § 128, subd. (a)(5); *Great Lakes Construction, Inc. v. Burman* (2010) 186 Cal.App.4th 1347, 1355.)

The right of a party to be represented by counsel of his or her own choosing is a significant right that should not be abrogated in the absence of a showing that the integrity of the judicial process will be injured, or that the opposing party will be unfairly disadvantaged by the use of confidential information obtained through an earlier representation. (*Johnson v. Superior Court (Ira L. Johnson)* (1984) 159 Cal.App.3d 573, 580, superseded by statute as stated in *In re Marriage of Lambe & Meehan* (1995) 37 Cal.App.4th 388.)

The burden is on the party seeking disqualification to prove the grounds for disqualification. (*Faughn v. Perez* (2006) 145 Cal.App.4th 592, 596 (*Faughn*).) In a motion to disqualify counsel, a trial court must examine the motion carefully to ensure that literalism does not deny the parties substantial justice. (*People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1144 (*Speedee Oil*).) Depending on the circumstances, the motion may involve considering the client's right to choose counsel, an attorney's interest in representing a client, the financial burden on a client to replace a disqualified counsel, and the possibility that tactical abuse underlies the disqualification motion. (*Id.* at p. 1145.) Nevertheless, the "paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar." (*Ibid.*)

If an attorney is disqualified from representation due to an ethical conflict, then that disqualification, generally, extends to the entire firm. (*Flatt v. Superior Court (William Daniel)* (1994) 9 Cal.4th 275, 283 (*Flatt*).) This extension is based upon the imputed knowledge theory. (*Derivi Construction & Architecture, Inc. v. Wong* (2004) 118 Cal.App.4th 1268, 1273.)

Rule 1.19 of the Rules of Professional Conduct, precludes a lawyer who represented a former client from representing another client in the same or substantially related matter whose interests are materially adverse to the former client unless written consent is provided. In actions where the potential conflict arises from successive representation of clients with potentially adverse interests, the chief fiduciary value in jeopardy is client confidentiality. (*Flatt, supra*, 9 Cal.4th at p. 283.) "Thus, where a former client seeks to have a previous attorney disqualified from serving as counsel to a successive client in litigation adverse to the interests of the first client, the governing test requires that the client demonstrate a "substantial relationship" between the subjects of the antecedent and current representations." (*Ibid.*)

"To determine whether there is a substantial relationship between successive representations, a court must first determine whether the attorney had a direct professional relationship with the former client in which the attorney personally provided legal advice and services on a legal issue that is closely related to the legal issue in the present representation." (*City & County of San Francisco v. Cobra Sols., Inc.* (2006) 38 Cal.4th 839, 847 (*Cobra*).) A lawyer is presumed to possess confidential information "if the subject of the prior representation put the attorney in a position in which confidences material to the current representation would normally have been imparted to counsel." (*Ibid.*)

In indirect relationships, the presumption that the attorney holds confidential information does not apply and an adequate showing must exist that the attorney was in a position to have acquired confidential information to establish the prior and current representations are substantially similar. (*Cobra, supra*, 38 Cal.4th at p. 847.) Such analysis turns on whether the subjects of the prior representation made it likely the attorney acquired confidential information that is relevant and material to the present representation. (*Ibid.*) “Subjects” is broader than the discrete and factual issues involved in the two representations, and includes “information material to the evaluation, prosecution, settlement or accomplishment of the litigation or transaction given its specific legal and factual issues.” (*Jessen v. Hartford Casualty Ins. Co.* (2003) 111 Cal.App.4th 698, 712-13.)

“Under California law a law firm is not subject to disqualification because one of its attorneys possesses information concerning an adversary's general business practices or litigation philosophy acquired during the attorney's previous relationship with the adversary.” (*Wu v. O’Gara Coach Co., LLC* (2019) 38 Cal.App.5th 1069, 1083 (*Wu*).) “To be protected through a disqualification order, “the information acquired during the first representation [must] be “material” to the second; that is, it must be found to be directly at issue in, or have some critical importance to, the second representation.”” (*Ibid.*)

Where the substantial relationship between the subjects of the prior and current representations is demonstrated, then disqualification of the attorney representing the second client is mandatory. (*Cobra, supra*, 38 Cal.4th at p. 847.) “It must be remembered, however, that disqualification is a drastic course of action that should not be taken simply out of hypersensitivity to ethical nuances or the appearance of impropriety.” (*Roush v. Seagate Technology, LLC* (2007) 150 Cal.App.4th 210, 219; *M’Guinness v. Johnson* (2015) 243 Cal.App.4th 602, 627 [“[W]hile disqualification is a drastic measure and motions to disqualify are sometimes brought by litigants for improper tactical reasons, disqualification is not ‘generally disfavored.’”].)

Analysis

Respondents argue that Attorney Miller must be disqualified under California Rules of Professional Conduct, rule 1.11, because Attorney Miller was a former employee of the County, specifically, as a volunteer air medic, reserve deputy, and, most importantly, a custodian of records for the County.

California Rules of Professional Conduct, rule 1.11 provides in relevant part:

- (a) Except as law may otherwise expressly permit, a lawyer who has formerly served as a public official or employee of the government:
 - (1) is subject to rule 1.9(c); and
 - (2) shall not otherwise represent a client in connection with a matter in which the lawyer participated personally and substantially as a public official or employee, unless the appropriate government agency gives its informed written consent to the representation. This paragraph shall not apply to matters governed by rule 1.12(a).
- ...
- (c) Except as law may otherwise expressly permit, a lawyer who was a public official or employee and, during that employment, acquired information that the lawyer knows is confidential government information about a person, may not represent a private client whose interests are adverse to that person in a matter in which the information could be used to the material disadvantage of that person. As used in this rule, the term “confidential government information” means information that has been obtained under governmental authority, that, at the time this rule is applied, the government is prohibited by law from disclosing to the public, or has a legal privilege not to disclose, and that is not otherwise available to the public. A firm with which that lawyer is associated may undertake or continue representation in the matter only if the personally prohibited lawyer is timely screened from any participation in the matter and is apportioned no part of the fee therefrom.

(Rules Prof. Conduct, rule 1.11(a), (c).)

In support of the Motion, Respondents submit the declaration of Eric Stoll, a lieutenant at the San Bernardino County Sheriff's Department, Internal Affairs Unit.

Lt. Stoll testifies that Attorney Miller was a volunteer air medic, reserve deputy, and custodian of records for the County. Specifically, Attorney Miller became a civilian volunteer for rescue operations beginning on October 14, 1989, and up until December 9, 2022 when he was discharged from his volunteer rescue position. Additionally, on September 13, 1993, Attorney Miller was also appointed as a reserve deputy sheriff. Attorney Miller was assigned to the internal affairs as the custodian of records from June 8, 2019 to July 20, 2023, when he resigned. (Stoll Decl. ¶¶ 2-3.)

Lt. Stoll states that as the custodian of records, Attorney Miller was privy to confidential government information of the County Sheriff's Department, including personnel records and records of investigations. Attorney Miller also participated personally and substantially in the types of matters for the County, in which he now represents Petitioner against the County, as Petitioner seeks records of which Attorney Miller was a custodian. (Stoll Decl. ¶ 5.)

Moreover, the County was a major client of Attorney Miller's former law firm, Brunick McElhaney and Kennedy. Attorney Miller's personnel file with the County states that between March 1983 and May 2005, he was employed as an attorney and partner with Brunick McElhaney and Kennedy. It is documented that Attorney Miller litigated lawsuits in state and federal courts including allegations of police misconduct, excessive force, and First and Fourth Amendment violations. (Stoll Decl. ¶ 4.)

Respondents also point out that allegations made in Petitioner's pleading corroborate the fact that Attorney Miller had participated directly and personally in this matter during his employment with the County.

For example, in the Original Petition filed on February 11, 2025, Petitioner alleges that on June 13, 2023, Attorney Miller, himself, submitted multiple CPRA requests (Request Nos. 23-3485, 23-3478, 23-3497) seeking the same public records sought by Petitioner in this Action. (Pet. ¶¶ 140, 157, 168.) Petitioner specifically admits that Petitioner's CPRA requests "are little more than duplicates of requests [Attorney Miller] previously submitted to the Sheriff's Department beginning in June 2023." (Pet. ¶ 201.)

Respondents point out that at the time these CPRA requests were submitted, Attorney Miller was still employed by the County as a custodian of records, and therefore, Attorney Miller had access to all the public records involved in this Action and that Attorney Miller's own actions, while he served as the County's custodian of records, are central to the Petition's factual allegations. Respondents argue that Attorney Miller is prohibited from serving as a witness in this matter pursuant California Rules of Professional Conduct, rule 3.7. [California Rules of Professional Conduct, rule 3.7(a) states that: "[a] lawyer shall not act as an advocate in a trial in which the lawyer is likely to be a witness unless: (1) the lawyer's testimony relates to an uncontested issue or matter; (2) the lawyer's testimony relates to the nature and value of legal services rendered in the case; or (3) the lawyer has obtained informed written consent* from the client...]

Furthermore, Respondents also point out that the Declaration of Attorney Miller attached to the Original Petition revealed that Attorney Miller acquired confidential information while serving as the former custodian of records for the County. However, in opposition, Petitioner correctly points out that Respondents have misquoted the Declaration of Attorney Miller. Furthermore on Reply, Respondents admit that they have mistakenly conflated Petitioner Gilley's Declaration with Attorney Miller's Declaration, which are both attached the Original Petition, and appears to concede on this issue. As such,

Respondents' argument that Attorney Miller possessed actual confidential information is not sufficiently substantiated.

In opposition, Petitioner also argues that disqualification is improper because there is no evidence that Attorney Miller actually obtained relevant confidential information that would disqualify him from representing Petitioner. Petitioner also argues that the fact that Attorney Miller had submitted his own CPRA requests is not evidence that Attorney Miller obtained confidential information, and instead, supports Petitioner's allegations that Respondents have repeatedly violated the CPRA.

Petitioner argues that Respondents have misrepresented Attorney Miller's position with the County. Attorney Miller testifies that he was not the custodian of records for the Internal Affairs Division ("IAD") at the County Sheriff's Department. Instead, Attorney Miller states that he only worked as an hourly "safety extra help" Pitchess motion custodian of records, and only when scheduled. (Miller Decl. ¶¶ 24-26.) In such a capacity, Attorney Miller testifies that he only went to the IAD to obtain specific personnel files sought by a Pitchess motion and to return the personnel files to the IAD at the conclusion of Pitchess motion hearing. Attorney Miller further testifies that he never performed other custodian of record duties for the IAD and he never personally reviewed any files while at the IAD. (Miller Decl. ¶¶ 27, 29-32.) Additionally, Attorney Miller states that he never handled, accessed, had access to, or was provided custody of any personnel files or obtained confidential information related to the peace officers at issue in this Action. (Miller Decl. ¶¶ 33, 45-52.)

Additionally, Attorney Miller states that he did not obtain, use, or rely on any confidential information in preparing and submitting the CPRA requests, did not investigate, adjudicate, or otherwise participate in any matters for the County in which he now represents Petitioner, and will not act as a witness to this Action. (Miller Decl. ¶¶ 61-66.)

Here, when the arguments are considered, the fact that Respondents have not sufficiently demonstrated that Attorney Miller had actual possession of confidential information is not dispositive.

It is settled law that a court may disqualify an attorney from representing a client with interests adverse to those of a former client. (*H.F. Ahmanson & Co. v. Salomon Bros., Inc.* (1991) 229 Cal.App.3d 1445, 1451 (*Ahmanson*)). In *Ahmanson*, the Court of Appeal stated that:

A former client may seek to disqualify a former attorney from representing an adverse party by showing the former attorney actually possesses confidential information adverse to the former client. However, it is well settled actual possession of confidential information need not be proved in order to disqualify the former attorney. It is enough to show a 'substantial relationship' between the former and current representation. If the former client can establish the existence of a substantial relationship between representations, the courts will conclusively presume the attorney possesses confidential information adverse to the former client.

(*Id.* at p. 1452, citations omitted.)

Similarly, under California Rules of Professional Conduct, rule 1.9(a), "[a] lawyer who has formerly represented a client in a matter shall not thereafter represent another person in the same or a substantially related matter in which that person's interests are materially adverse to the interests of the former client unless the former client gives informed written consent."

Notably, Attorney Miller admits that from 1983 until about December 2004 or January 2005, he previously represented the County and its employees, in police misconduct, Fourth Amendment, lethal force, officer involved shootings, search and seizure, and First Amendment cases, and was also retained

by the Sheriff's Department to conduct investigations of public corruption, review IAD investigation procedures, and assisted with drafting first interagency vehicle pursuit policy, all while in private practice. (Miller Decl. ¶¶ 6-10.)

In *Khani v. Ford Motor Co.* (2013) 215 Cal.App.4th 916, 920 (*Khani*), the Court of Appeal discussed the establishment of a "substantial relationship," holding:

A substantial relationship exists where "the attorney had a direct professional relationship with the former client in which the attorney personally provided legal advice and services on a legal issue that is closely related to the legal issue in the present representation. (*Jessen v. Hartford Casualty Ins. Co.* (2003) 111 Cal.App.4th 698, 710-711.) If the former representation involved such a direct relationship with the client, the former client need not prove that the attorney possesses actual confidential information. (*Id.* at p. 709.)" (*City and County of San Francisco v. Cobra Solutions, Inc.* (2006) 38 Cal.4th 839, 847.) The attorney is conclusively presumed to possess confidential information "if the subject of the prior representation put the attorney in a position in which confidences material to the current representation would normally have been imparted to counsel." (*Ibid.*; see *Flatt v. Superior Court* (1994) 9 Cal.4th 275, 283; *H. F. Ahmanson & Co. v. Salomon Brothers, Inc.* (1991) 229 Cal.App.3d 1445, 1453.)

Here, there is a substantial relationship between Attorney Miller's former representation of the County and the current proceedings.

As discussed above, it is undisputed that Attorney Miller actually represented the County in public entity misconduct cases. (See Miller Decl. ¶¶ 6-11.) As a result, Attorney Miller would have likely obtained private details on how the County handles its defense against such lawsuits. Additionally, it is also undisputed that Attorney Miller worked as a Pitchess motions custodian of records for the IAD, which involves a similar legal issue in these proceedings, given that Petitioner seeks peace officer personnel records in this Action. (See *Ahmanson, supra*, 229 Cal.App.3d 1445, 1455 [holding that "the court should 'focus on the similarities between the two factual situations, the legal questions posed, and the nature and extent of the attorney's involvement with the cases. As part of its review, the court should examine the time spent by the attorney on the earlier cases, the type of work performed, and the attorney's possible exposure to formulation of policy or strategy.'"]].)

In light of these facts, the court finds that there is a substantial relationship between Attorney Miller's former and current representations. (*Cobra, supra*, 38 Cal.4th at p. 847 [holding that an attorney "is presumed to possess confidential information if the subject of the prior representation put the attorney in a position in which confidences material to the current representation would normally have been imparted to counsel."]; Rules Prof. Conduct, rule 1.9, comment 1 [noting that following termination, a lawyer may not "at any time use against the former client knowledge or information acquired by virtue of the previous relationship."].) Furthermore, Attorney Miller does not address the concern that representing the Petitioner in litigation against the County is considered adverse to it.

Lastly, Petitioner argues that the Motion be denied as being tardy. Petitioner points out that the Original Petition was filed and that a courtesy copy of the Original Petition was served on the County via email in February 2025 (Miller Decl. ¶ 187), but despite this Respondents did not file this Motion until over a year later. During this time, the Parties have attended several status conferences and discussed a variety of topics, including participating in mediation and entering into stipulations. (Miller Decl. ¶¶ 187-192.) Petitioner argues that Respondents are attempting to strategically bring this Motion to delay or withhold relevant discovery in this Action after they were recently served with deposition notices and written discovery requests. (Miller Decl. ¶¶ 193-195.)

In general, attorney disqualification can be impliedly waived by failing to bring the motion in a timely manner. (*Liberty National Enterprises, L.P. v. Chicago Title Ins. Co.* (2011) 194 Cal.App.4th 839, 844.) In order to justify attorney disqualification, the delay has to be extreme or unreasonable before it operates as a waiver. (*Id.* at 845.) When the party opposing the motion has made a prima facie showing of unreasonable delay causing prejudice, the burden shifts to the moving party to justify the delay. (*Ibid.*) It has also been held that the prejudice to the opponent must be extreme. (*Ibid.*)

Here, although written discovery has been propounded, this Action is not yet at issue. Respondents have not filed a responsive pleading yet and there has been no hearing date set for the Writ Petition. Furthermore, the fact that discovery will be delayed while Petitioner seeks replacement counsel is not demonstrated to be extreme prejudice, and there is no argument provided explaining why a brief delay in the prosecution of this Action would cause undue prejudice to Petitioner.

TENTATIVE RULING

Respondents' Motion to Disqualify Attorney Miller is granted. Attorney Miller is prohibited from representing the Petitioner in this action and all the related Gilley Petitions.